

SECOND SCHEDULE.

Section 8.

. REPEAL OF CERTAIN PROVISIONS OF LOCAL GOVERNMENT ACT, 1933.

Provision repealed.	Subject matter of provision.	Extent of repeal.
s. 140 ...	Alteration of boundaries of counties, boroughs, etc.	The whole section.
s. 141 ...	Alteration of urban or rural districts and parishes, etc.	In subsection (1). In paragraphs (a) and (b) respectively the words "of an urban or rural district or." In paragraphs (c) and (d) respectively, the words from the beginning to the third "or." Paragraph (e). In paragraph (f), the words "urban or rural district or."
s. 143 ...	Adjustment of boundaries of counties and county boroughs.	The whole section.
s. 146 ...	Review of county districts by county councils.	The whole section.

CHAPTER 39.

An Act to authorise the use of open space during a limited period for temporary housing accommodation, and for purposes connected therewith. [15th June 1945.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this section, the Minister of Health (in this Act referred to as "the Minister") may by order authorise a local authority for the purposes of Part V of the Housing Act, 1936, to use for the purposes of the Housing (Temporary Accommodation) Act, 1944, land vested in them, or at their disposal, at the passing of this Act which is, or forms part of, an open space:

Provided that this subsection shall have effect during the period of two years beginning with the passing of this Act and no longer.

Power to authorise use of open space during a limited period for temporary housing accommodation.

26 Geo. 5. &
1 Edw. 8.
c. 51.

7 & 8 Geo. 6.
c. 36.

(2) Such an authorisation shall not be given as to any land unless the Minister of Town and Country Planning certifies that he is satisfied that the use as aforesaid of that particular land is expedient in the public interest in consequence of the emergency that was the occasion of the passing of the said Act of 1944 and in the particular circumstances in which the authorisation is sought.

(3) Any such authorisation shall be for a period of not longer than ten years to be specified in the order, and shall be revocable during that period by order of the Minister.

(4) Whilst such an authorisation is in force, the land may be used for the erection thereon of structures made available under section one of the said Act of 1944, for the execution of all works required for that purpose, and for the provision of housing accommodation in such structures erected thereon, notwithstanding—

- (a) anything in any enactment relating to open spaces, including any enactment whether public general or local or private, by which any of the land is specially regulated; or
- (b) that the use of the land as aforesaid, or the execution of any such works as aforesaid, involves interference with any easement, liberty, privilege, right or advantage annexed to other land and adversely affecting that land, or breach of any restriction as to the use of the land arising by virtue of any contract;

and any right of way over the land, or other right relating thereto enjoyed by any person, whether by virtue of an interest in the land or otherwise, shall, in so far as the exercise thereof would interfere with the use of the land as aforesaid or the execution of any such works as aforesaid, not be exercisable.

8 & 9 Vict.
c. 18.

(5) If any other land is injuriously affected by the execution of works under the last preceding subsection on land as to which such an authorisation is given, the local authority shall be subject to the like liability to pay compensation under section sixty-eight of the Lands Clauses Consolidation Act, 1845, in respect of damage sustained by reason thereof as they would have been under if the works had been executed under an enactment incorporating that section on land acquired by them under that enactment.

(6) When such an authorisation ceases to be in force, the local authority shall forthwith take all steps requisite for securing the reinstatement of the land in the state in which it was before the authorisation was given, or in such altered state suited to the use of the land as open space as the Minister may approve; and accordingly subsection (1) of section two of the said Act of 1944, so far as it relates to the Minister's causing structures to be removed at the request of the local authority at any time after

the expiration of ten years from the passing of that Act, shall have effect as to structures on land as to which such an authorisation is given with the substitution of a reference to the authorisation's ceasing to be in force for the reference to the expiration of the said ten years.

(7) The reference in section one of the said Act of 1944, and references in the Housing Act, 1936, to land appropriated by a local authority for the purposes of Part V of the Housing Act, 1936, shall be construed as including references to land as to which an authorisation given to the local authority under this section is in force -

Provided that the local authority shall not be entitled by virtue of this subsection to exercise as to any such land as aforesaid any of the powers of sale, leasing and exchange conferred by section seventy-nine of the Housing Act, 1936, as to land appropriated for the purposes of the said Part V.

(8) In this section the expression "open space" has the same meaning as in the Housing Act, 1936, except that it does not include a disused burial ground.

2. The provisions of this Act shall in their application to Scotland have effect subject to the following modifications:— Application to Scotland.

- (a) for references to the Minister of Health there shall be substituted references to the Secretary of State;
- (b) in subsection (2) of section one for the words "the Minister of Town and Country Planning certifies that he is satisfied" there shall be substituted the words "the Secretary of State is satisfied";
- (c) for references to the Housing Act, 1936, there shall be substituted references to the Housing (Scotland) Acts, 1925 to 1938, and for references to Part V of the Housing Act, 1936, there shall be substituted references to Part III of the Housing (Scotland) Act, 1925; 15 & 16 Geo. 5.
c. 15.
- (d) in subsection (4) of section one for the word "easement" there shall be substituted the word "servitude", and for the words "any contract" there shall be substituted the words "any deed or contract";
- (e) for any reference to section sixty-eight of the Lands Clauses Consolidation Act, 1845, there shall be substituted a reference to section six of the Railways 8 & 9 Vict. Clauses Consolidation (Scotland) Act, 1845; and c. 33.
- (f) for any reference to the powers of sale, leasing and exchange conferred by section seventy-nine of the Housing Act, 1936, there shall be substituted a reference to the powers of sale, feuing, leasing or excambion conferred by section forty-five of the Housing (Scotland) Act, 1925.

3. This Act may be cited as the Housing (Temporary Accommodation) Act, 1945. Short title.